

To
The Estate Officer / Executive Officer
Cantonment Nasirabad.

Ajmer
7-2-2007

Sub: - Notice under sec.5A (2) PP Act 1971
Ref: - Your No.87 dated 3.12.99

Sir,

1 This reminder is again submitted in continuation to earlier reminders about my house nos. 533 & 532, in above reference requesting your honour to drop action under PP act considering the following facts.

House No.	GLR Survey No.	Plot Area	Land Classification	Old Grant
533	280 / 752	1120 sft	B (3)	House Tax Paid upto 3/06
532	280 / 751	405 sft	B (3)	House Tax Paid upto 3/06

Land area of both the above houses cumulatively is **1525 sft of old grant**, situated in Ramdayal mohalla Nasirabad, bound at site as below and shown in attached site plan.

On the North by: - Gully
On the South by: - Road
On the East by: - H.N. 534
On the West by: - RASTA

2. Encroachment on govt. land B (4) measuring 701 sft as reported by Overseer under PP act.

Actually land of both the houses have been objected, (i) of H.no.533 measuring 296 sft chabutra, a part of its all area 1120sft and (ii) of H.no.532 (its adjoining building site) measuring its all area 405 sft compounded to 701sft has shown as encroachment on govt. land under PP act.

Land of both houses since origin is already classed B(3) old grant in GLR and land 701sft objected is part and parcel of their specified areas of both the houses. Cantt is charging their house tax of course by legal notices. So action under PP act is not justified. Kutchra house No.532 deteriorated by rains over the years and lastly remains is its building site.

Sy.No.of encroached land is reported as 280/4485(pt), while GLR sy. nos. are 280/751&752 of H.nos.532 & 533 quoting land class as **B(3) old grant** duly specifying their actual areas 405 sft and 1120 sft. Objected land 701sft is duly vested in original specified areas as part thereof. No govt. land even an inch other than public *rastras* or road exists around houses as such encroachment is out of question. **House tax** of both houses had been paid throughout to Cantt. on demand notices and nothing is due up to 3/2006.

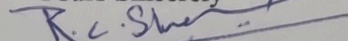
3. Briefly 296 sft is part of H no. 533 and 405 sft is the all area of H no. 532 thus 701 sft has been reported utterly wrong as encroachment on govt.land. This 701 sft area is part and parcel of 1525 sft cumulative area of both houses .533 and 532 of old grant class B (3) land as per GLR.

4 B(4) govt.land is tax free, but houses on B(3) land are legally taxed. 701 sft objected land is B(3) old grant belongs to house nos. 532 & 533. It is wrong to say this land as B(4) govt. land despite of having realized house tax duly assessed time to time for over eighty years by legal notices.

5 I request your honour to consider above points to drop the case under PP act, regularizing misunderstanding for good. Sir I'm senior citizen humbly pray to beg a favour for early disposal due to sickly health at 73 which sometimes may not permit physical presence on hearing dates.

Thanking you highly.

Yours Sincerely


(R.C.Sharma)

S/o Late Narain Gordhan

Encls. Site Plan

1093'A'Balupura Road, Adarsh nagar,Ajmer